

IN THE FEDERAL CIRCUIT AND FAMILY COURT OF AUSTRALIA
AT NEWCASTLE

NCC3896/2023

BETWEEN

Stephen Christopher Cooke
(Applicant)

AND

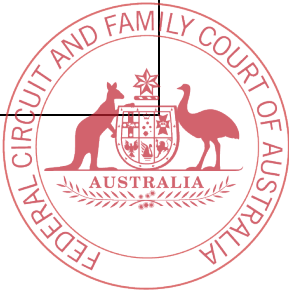
Heather Anne Cooke
(Respondent)

COSTS NOTICE

Pursuant to Part 12.3, Rules 12.06(2) and (3) of the FCFCOA (Family Law) Rules 2021

COSTS UP TO FIRST RETURN		
1.	Costs paid by the Applicant to Clarity Lawyers from 20 November 2023 to date	\$60,347.98
2.	Costs owing by the Applicant to Clarity Lawyers from 20 November 2023 to date	\$0
3.	Fees for work in progress incurred by the up to the time of serving this notice	\$24,992.89
4.	Fees paid for mediation	\$1,925.00
5.	Subpoena conduct money	\$681.60
6.	Fees paid to Counsel to date	\$2,750.00
7.	Likely fees to be incurred by the Applicant for the solicitor attending Interim Hearing on 11 April 2024 – estimated at 4 hours	\$1,760.00
8.	Likely fees to be incurred by the Applicant for Counsel attending Interim Hearing on 11 April 2024.	\$6,050.00
	TOTAL	\$98,507.47

COSTS UP TO AND INCLUDING A 3 DAY FINAL HEARING		
1.	Likely costs to be incurred by the Applicant up to the conclusion of the pre-trial stage	\$25,000 - \$35,000
2.	Likely costs to be incurred by the Applicant for the ICL’s fees (if applicable) up to the conclusion of the pre-trail stage (including Family Dispute Resolution, directions hearing, interim or summary hearing as a discrete event and listing of the matter for hearing)	Not applicable



3.	Likely costs to be incurred by the Applicant in the preparation for and attendance at a 3 day hearing for solicitors fees and estimated disbursements	\$60,000 - \$80,000
4.	Likely costs to be incurred by the Applicant in the preparation and for attendance at a 3 day hearing for counsel fees	\$20,000 - \$30,000
5.	Any and all other work undertaken on behalf of the Applicant will be charged in accordance with terms of the Costs Agreement at the solicitor's specified rate (incl GST)	\$440.00
	TOTAL	\$105,000 - \$145,000

Costs paid by the Applicant to date have been paid from legal finance approved for the Applicant taking into account the matrimonial assets and the settlement the Applicant will receive.

On behalf of the Applicant



Jacqueline Turner

Clarity Lawyers

Date: 10.4.2024

